

25STCV22222 25STCV22222

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-09

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Case Number: 25STCV22222 Hearing Date: July 9, 2026 Dept: 617

Dept.

617

Date:

7-9-26

Case

#: 25STCV22222

Trial

Date: None Set

MOTION TO STRIKE

MOVING

PARTY: Defendants, 1015 West Garvey West Covina, LP and MIG Management, Inc.

RESPONDING

PARTY: Plaintiffs, Sean McClure and Sandra McClure

RELIEF

REQUESTED

Motion

to Strike

SUMMARY

OF ACTION

Plaintiffs

Sean McClure and Sandra McClure brought the instant habitability action against Defendants 1015 West Garvey West Covina, LP and MIG Management, Inc. alleging an unremedied cockroach infestation, faulty weather protection, and defective plumbing, among other issues.

RULING: Denied.

Defendants

move to strike Plaintiffs' prayer for punitive damages and allegations supporting their punitive damages claim. They argue that Plaintiffs do not sufficiently plead their entitlement to punitive damages. Plaintiffs oppose the motion, maintaining the sufficiency of their allegations. Defendants' motion is denied.

To

support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Malice" is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id. § 3294, subd. (c)(2).) "To support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff 'must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.'" (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) "Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation." (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6-7.)

Plaintiffs

have sufficiently pled their punitive damages claim. They allege numerous defective conditions spanning multiple years and across two different units. This includes a cockroach infestation, faulty weather protection, defective plumbing, and dilapidation. [Compl. ¶¶ 22-56.] Plaintiffs further allege that these issues persisted despite notice to Defendants and that Defendants' failure to

remedy the hazards was done “intentionally and knowingly” and to prioritize their own profits. [Id. ¶¶ 81, 85.] This is sufficient to support their punitive damages request. (See *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920 [prayer for punitive damages sufficiently supported by allegations of defective conditions creating a nuisance and defendants’ “full knowledge of the consequences thereof and the damage being caused to plaintiff”].) Defendants’ motion is therefore denied.

Defendants
to answer the operative complaint within 10 days.

Defendants
to give notice.